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Appellate Court Records

IN THE SUPREME COURT OF THE STATE OF OREGON

STOP THE DUMP COALITION, WILLAMETTE VALLEY WINERIES ASSOCIATION, RAMSEY MCPHILLIPS, and FRIENDS OF YAMHILL COUNTY,
Petitioners,
Cross-Respondents,
Petitioners on Review,

v.

YAMHILL COUNTY and RIVERBEND LANDFILL CO.,
Respondents,
Cross-Petitioners,
Respondents on Review.

Land Use Board of Appeals
2016026

A162746

S064894

BRIEF ON MERITS – PETITIONERS ON REVIEW

Appeal from a July 8, 2016 Final Opinion and Order of the Land Use Board of Appeals, Opinion by Bassham, Board Member

The Court of Appeals affirmed on petition and cross-petition on March 22, 2017.
Before Sercombe, P.J., Flynn, J., and DeHoog, J.,
Opinion by Sercombe, P.J.

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August 2017

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I. INTRODUCTION

This proceeding arises out of the approval by Respondent/Cross-Petitioner/Respondent on Review Yamhill County (the "county") of an application by Respondent/Cross-Petitioner/Respondent on Review Riverbend Landfill Co. (the "applicant" or "Riverbend") for Site Design Review and Floodplain Development permits for the expansion of its landfill in the Exclusive Farm Use (EFU) zone.[1]

This Court's review follows two appeal proceedings in the Land Use Board of Appeals and one in the Court of Appeals. For ease of reference, these will be denoted as follows:

> "*SDC-1*"—*Stop the Dump Coalition v. Yamhill County*, 72 Or LUBA 341 (2015).
>
> "*SDC-2*"—*Stop the Dump Coalition v. Yamhill County*, 74 Or LUBA 1 (2016).
>
> "*SDC*"—*Stop the Dump Coalition v. Yamhill County*, 284 Or App 470, ___ P3d ___ (2017), *rev allowed*, 361 Or 645 (2017).

Riverbend's landfill is classified as a nonfarm use. Land uses allowed outright in EFU zoning districts in nonmarginal lands counties are listed in

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[1] The county and Riverbend are collectively referred to as "respondents" herein.

ORS 215.283(1).[2] ORS 215.283(1) lists 24 categories of uses allowed as a matter of right in the EFU zone. Landfills are not listed among them.

ORS 215.283(2) lists a number of *nonfarm* uses, conditionally approvable if they are shown to comply with the requirements of ORS 215.296. ORS 215.283(2)(k) refers to a "site for the disposal of solid waste." Riverbend sought approval of its landfill expansion by means of that provision, and thus had to meet the burden of proof established by ORS 215.296. The statute provides in material part:

> **215.296 Standards for approval of certain uses in exclusive farm use zones; violation of standards; complaint; penalties; exceptions to standards.** (1) A use allowed under ORS 215.213 (2) or (11) or 215.283 (2) or (4) may be approved only where the local governing body or its designee finds that the use will not:
>
> (a) Force a significant change in accepted farm or forest practices on surrounding lands devoted to farm or forest use; or
>
> (b) Significantly increase the cost of accepted farm or forest practices on surrounding lands devoted to farm or forest use.
>
> (2) An applicant for a use allowed under ORS 215.213 (2) or (11) or 215.283 (2) or (4) may demonstrate that the standards for approval set forth in subsection (1) of this section will be satisfied through the imposition of conditions. Any conditions so imposed shall be clear and objective.

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[2]Yamhill County is a so-called nonmarginal lands county. There are only two "marginal lands" counties, in which uses on EFU lands are governed by an equivalent statute, ORS 215.213. The distinction has no relevance in this appeal.

As LUBA stated in *SDC-2,* 74 Or LUBA at 5, the "ORS 215.296(1) test is sometimes referred to as the Farm Impacts test or the significant change/cost standard." For consistency of reference, petitioners will refer to it as the "farm impacts test" herein.

Petitioners on review ("petitioners")[3] successfully appealed the county's approval of Riverbend's application to LUBA twice, in *SDC-1*and *SDC-2.* In each instance, LUBA construed the language of ORS 215.296(1) pursuant to its plain text:

> Because the term "significant" is undefined, and of common usage, it is permissible to consult dictionary definitions. The most pertinent definition of "significant" in *Webster's Third New International Dictionary* (2002), 2116, appears to be "**3 a :** having or likely to have influence or effect : deserving to be considered[.]" Because ORS 215.296(1) is framed in the negative (the applicant must demonstrate that the proposed use "will not" force a significant change, etc.), it seems appropriate to consider related antonyms such as the term "insignificant," which Webster's defines in relevant part as "**e :** of little size or importance[.]" * * *

SDC-2, 74 Or LUBA at 5, n 3.

LUBA's remand in *SDC-2* was issued upon narrow grounds, and petitioners petitioned the Court of Appeals for judicial review.[4] The court

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[3]Petitioner Friends of Yamhill County ("FYC") was designated an intervenor-petitioner in both of the LUBA appeals described herein.

[4]Respondents filed a cross-petition for judicial review, challenging the portion of LUBA's decision sustaining one of petitioners' assignments of error.

affirmed LUBA's decision, while setting out an entirely new interpretation of the language of the statute. The court adopted two new and substantially similar approaches to the farm impacts test contained in ORS 215.296. It stated:

> [A] "significant" change or cost increase of an accepted farm practice is a change or cost increase that will significantly affect the preservation of productive agricultural land for, among other things, the purpose of obtaining a profit in money and providing food.

SDC, 284 Or App at 485.

The court also stated that the "relevant inquiry is whether the conditioned practice or cost is 'significant' because the change will significantly decrease the supply of agricultural land, the profitability of the farm, or the provision of food." *Id.* at 486.

In this review proceeding, petitioners seek review of the written opinion of the Court of Appeals affirming LUBA on petitioners' petition for judicial review. This case presents an issue of first impression in this Court regarding the interpretation and application of ORS 215.296(1) as to impacts of nonfarm uses upon accepted farm and forest practices and the cost of those practices.[5] It also presents an issue of first impression regarding the interpretation and

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[5]In this proceeding, petitioners address only the effects of the court's ruling with respect to farm practices. However, we would expect that the test adopted by the court would apply equally to impacts upon forest practices, and the problems identified here would arise as to forest practices as well.

application of ORS 215.296(2), governing conditions of approval intended to demonstrate compliance with ORS 215.296(1).

Petitioners contend that the decision of the Court of Appeals conflicts with the plain text of the statute, the legislative intent behind its adoption, and the underlying statutory and regulatory scheme. Therefore, the portion of the Court of Appeals decision affirming LUBA on petitioners' petition for judicial review should be reversed, and this case remanded to LUBA for further proceedings consistent with the opinion of this Court.

II. QUESTIONS PRESENTED AND PROPOSED RULES OF LAW

A. Questions Presented on Review

(1) In the review of a proposed nonfarm use in an EFU zone under ORS 215.296(1) and (2), will the applicant meet its burden of proof under the farm impacts test by showing that the use will not significantly decrease the supply of agricultural land, the profitability of affected farms, or the provision of food?

(2) Does the applicant meet its burden under the farm impacts test by means of conditions of approval adopted under ORS 215.296(2) which force the farmer to adopt new farm practices against his/her will in order to mitigate impacts?

(3) Does the applicant meet its burden under the farm impacts test by means of conditions of approval which force the farmer against his/her will to regularly allow the entry of third parties onto the farm to carry out mitigation at the applicant's expense?

(4) Does the applicant meet its burden under the second part of the farm impacts test (no significant increase in the cost of accepted farm practices) by means of conditions of approval requiring the applicant to pay or reimburse a farmer for additional costs incurred due to impacts of the nonfarm use?

(5) Does the applicant meet its burden under the farm impacts test by means of a condition of approval compelling an adversely affected farmer to sell his/her tainted crop to the applicant at market price, rather than to customers in the farmer's established commercial marketplace?

(6) Does the applicant meet its burden under the farm impacts test if successful mitigation of significant impacts will only occur after a period of years?

(7) When the local government record demonstrates that a proposed nonfarm use will significantly reduce the price received for a crop, is this cognizable under ORS 215.296(1)?

(8) In evaluating cumulative farm impacts under ORS 215.296, need a county only consider the cumulative impacts of multiple insignificant impacts

on individual farms, or must the county consider the cumulative effect of multiple impacts upon two or more farms

B. Proposed Rules of Law

(1) Achieving compliance with ORS 215.296(1) requires compliance with both ORS 215.296(1)(a) (no significant change in accepted farm practices and (1)(b) (no significant increase in the cost of accepted farm practices), and not merely one or the other.

(2) Under ORS 215.296(1)(a), a proposed nonfarm use will force a change in accepted farm practices if it will influence or affect such practices. That change is deemed significant unless it is of little size or importance. Similarly, under ORS 215.296(1)(b), a proposed nonfarm use which increases the cost of accepted farm practices will significantly increase such cost unless the increase is of little size or importance.

(3) Compliance with ORS 215.296(1) cannot be achieved by conditions imposed under ORS 215.296(2),which themselves force a farmer to adopt new farm practices. In the absence of the affected farmer's concurrence, conditions which purport to force farmers to do any of the following fail as a matter of law to meet the applicant's burden of proof under the statute:

(a) To accept the entry of third parties onto the farm to carry out mitigation activities, whether selected by the applicant or the farmer, and

regardless of who has responsibility for paying the third parties; or

(b) To sell their crops to the applicant rather than within the farmer's established commercial marketplace in order to mitigate for the applicant's tainting of the crop and the resulting loss of normal buyers.

(4) The applicant's burden under the farm impacts test is not met if successful mitigation of significant impacts will only occur after a period of years following commencement of the proposed nonfarm use.

(5) If the market value or sales price of a crop is demonstrated to be significantly reduced due to the impacts of a proposed nonfarm use, the proposed use will force a significant change in accepted farm practices under ORS 215.296(1)(a), or significantly increase the cost of accepted farm practices under ORS 215.296(1)(b).

(6) In evaluating cumulative farm impacts under ORS 215.296, a county must consider evidence of multiple impacts upon two or more farms even if the impact upon a single farm is not independently significant.

III. NATURE OF PROCEEDING AND MATERIAL FACTS

A. Nature of Action and Relief Sought

As set out in petitioners' introduction, above, this appeal seeks review of a written opinion of the Court of Appeals which affirmed the Land Use Board of Appeals' application of ORS 215.296(1) and (2), while setting forth an

entirely new interpretation of the statute. The underlying proceeding before Yamhill County had resulted in the approval of respondent Riverbend's application for Site Design Review and Floodplain Development permits to allow the expansion of its landfill, a nonfarm use, in the Exclusive Farm Use (EFU) zone.

Petitioners seek reversal of the decision of the Court of Appeals upon petitioners' petition for judicial review in that court, and remand of this case to LUBA for further proceedings consistent with the opinion of this Court.

B. Material Facts

Respondent Riverbend owns and operates Riverbend Landfill, used for dumping garbage and other waste, within a bend of the South Yamhill River approximately three miles southwest of McMinnville. The landfill is a solid waste disposal facility in an EFU zoning district; the surrounding area consists largely of EFU-zoned lands in various agricultural uses.

In 2014, Riverbend filed an application with the county for the expansion of its landfill. The county approved Riverbend's application with conditions, and petitioners appealed the county's decision to LUBA in *SDC-1*. In its final opinion and order in *SDC-1,* LUBA described the nature of the county's proceeding:

> Riverbend * * * filed applications for site design review and a floodplain development permit to authorize the proposed expansion. Riverbend proposed to add a new Module 10 north of the existing landfill site, and a new Module 11 southwest of the site. The proposed expansions would occupy land that qualifies as high-value farmland. Riverbend also proposed to increase the height of existing berms and add additional fill to five existing modules. The proposed expansions would add 15 years of capacity to the landfill operation, which would otherwise reach full capacity in 2017.[6]
>
> The surrounding area consists largely of EFU-zoned lands in various agricultural uses. * * *

SDC-1, 72 Or LUBA at 347.

In other words, Riverbend's landfill was an existing operation. As a result, the nature of its impacts upon nearby farms was known and not a matter of conjecture. The proposed expansion of the landfill would bring Riverbend's operation and its known impacts closer to certain farms than had previously been the case. *SDC-1,* 72 Or LUBA at 367, 368, 376; *SDC-2*, 74 Or LUBA at 23. The extension of the landfill's lifetime by 15 years would greatly prolong the duration of its impacts upon farms and farmers.

In *SDC-1,* LUBA remanded the appealed decision to the county. On remand, the county reopened the record for limited purposes, and again approved Riverbend's application with conditions. In the proceeding which

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[6]Proposed Module 10 was removed from the application before the county reached its decision. Proposed Module 11 and the reopening of existing modules remained and were approved.

underlies the Supreme Court's review herein, petitioners appealed the county's decision on remand to LUBA, which in *SDC-2* remanded it to the county on a single issue, and otherwise denied petitioners' assignments of error. LUBA's decision in *SDC-2* led to petitioners filing their petition for judicial review in the Court of Appeals, whose decision to affirm LUBA in turn led to the filing of the petition for review before this court.

In its final opinion and order in *SDC-2*, LUBA summarized the issues it had adjudicated in *SDC-1* and the posture of the proceeding:

> The present decision is on remand from LUBA. *Stop the Dump Coalition v. Yamhill County*, 72 Or LUBA 341 (2015) (*SDC-1*). In that decision, LUBA sustained two assignments of error in part concerning ORS 215.296(1), which requires a finding that the proposed use in an exclusive farm use zone will not force a significant change in accepted farm practices, or significantly increase the cost of such practices, on surrounding lands. The ORS 215.296(1) test is sometimes referred to as the Farm Impacts test or the significant change/cost standard.
>
> In *SDC-1*, LUBA identified several analytical errors and remanded the county's decision to reevaluate the evidence in the record free of those analytical errors, and to determine whether Riverbend has demonstrated that the cumulative impacts of the proposed use will not force a significant change in, or significantly increase the costs of, accepted farm practices on surrounding lands. In particular, LUBA directed the county to reconsider the evidence with respect to several types of landfill expansion impacts on farm practices, including: (1) impacts of litter on the adjacent McPhillips farm, (2) impacts of nuisance birds on nearby farms, (3) impacts on pheasant- raising operations on the McPhillips farm, and (4) impacts on farmstands and direct farm sales on nearby farms.
>
> On remand, the county commissioners re-opened the evidentiary record to accept new evidence with respect to some of the remand issues,

> conducted a public hearing on February 4, 2016, and allowed the parties to file written rebuttal of new evidence until February 11, 2016. On February 18, 2016, the commissioners deliberated and re-approved the proposed use, adopting findings in support on February 25, 2016. This appeal followed.

SDC-2, 74 Or LUBA at 4-6 (footnotes omitted).

In *SDC-2,* petitioners challenged the county's determination that Riverbend had met its burden of proving compliance with ORS 215.296(1) and the equivalent local provision, Yamhill County Zoning Ordinance (YCZO) 402.02(V). LUBA again remanded the county's decision, this time solely to evaluate cumulative impacts, *i.e.*, "whether multiple insignificant impacts to each particular farm operation, considered together, reach the threshold of significance for that particular farming operation." *Id.,* 74 Or LUBA at 36. In denying petitioners' remaining assignments of error, LUBA stated:

> As discussed above, we have affirmed the county's conclusions that individual impacts, as conditioned, are insignificant. *In some cases, our affirmance rested heavily or entirely on the conditions that were imposed.* Indeed, in addressing litter impacts on the McPhillips farm, we concluded that it was a close question, even considering the imposition of conditions. * * *

Id., 74 Or LUBA at 37. (Emphasis added.)

Thus, LUBA also held that the applicant's burden under ORS 215.296 was met through certain conditions of approval, which conditions petitioners contended in themselves force a significant change in accepted farm practices, and in the cost of those practices. Condition 25 is directed at the significant

impacts of waste escaping from the landfill being deposited upon the adjacent McPhillips farm:

> 25. Until Riverbend Landfill no longer receives waste for landfilling, the Applicant must ensure that the grass and hay fields located on the McPhillips farm (Tax Lots 401 and 700) are patrolled for litter prior to when those fields are harvested through one of the three following methods, the choice of which shall be at the sole discretion of the owner/operator of the McPhillips farm:
>
> i. Applicant will provide litter patrolling services
>
> ii. The Owner/Operator and Applicant will jointly identify a third party to provide litter patrolling services at the Applicant's sole expense
>
> iii. The Owner/Operator will provide litter patrolling services and Applicant will reimburse that actual, reasonable costs for those services.

(RT 415)

Conditions 26 and 27 are directed at the impacts of waste deposited by birds attracted to the landfill upon the cherry and berry crops at the Frease farm, rendering those crops unsaleable:

> 26. Upon commencement of waste disposal in the expansion area, and until Riverbend Landfill no longer receives waste for landfilling, the Applicant shall purchase all cherries produced and presented to the Applicant for sale by the Frease farm from the existing cherry trees (Tax Lot 5502-700) at the rate of $4.50 per pound. Each year, Riverbend must provide documentation to the County establishing the average retail rate of cherries in the McMinnville area and adjust the above rate accordingly.

> 27. Upon commencement of waste disposal in the expansion area, and until Riverbend Landfill no longer receives waste for landfilling, the Applicant shall purchase all berries produced and presented to the Applicant for sale by the Frease farm from the existing berry vines (Tax Lot 5502-700) at the rate of $4.00 per pound. Each year, Riverbend must provide documentation to the County establishing the average retail rate of berries in the McMinnville area and adjust the above rate accordingly.

(*Id.*)

LUBA also denied the portions of petitioners' assignments of error in which petitioners argued:

(1) Significant loss of sales or reduced prices for wine grapes grown commercially at a nearby vineyard, which are a result of the proposed nonfarm use, serve to demonstrate noncompliance with ORS 216.296(1); and

(2) The effect of cumulative "insignificant" impacts must be measured across multiple farms, and not merely individual farms.

In the Court of Appeals, petitioners challenged LUBA's decision, and the county and Riverbend cross-petitioned as to LUBA's remand for the county to address cumulative impacts upon a single farm. The Court of Appeals affirmed on petition and cross-petition. In so doing, the court went far beyond LUBA's reasoning; it interpreted and applied the text of ORS 215.296 in a new and unprecedented manner, holding in part:

> Accordingly, a "significant" change or cost increase of an accepted farm practice is a change or cost increase that will significantly affect the preservation of productive agricultural land for, among other things, the purpose of obtaining a profit in money and providing food.

SDC, 284 Or App at 485.

Then, in response to petitioners' arguments regarding the above conditions of approval, the court set out its defining test:

> Petitioners' argument that the conditions significantly affect farm practices or the costs of those practices, regardless of whether the conditioned effects are "adverse," misses the point. The issue is whether the effects of those changes are "significant." * * * *Instead, the relevant inquiry is whether the conditioned practice or cost is "significant" because the change will significantly decrease the supply of agricultural land, the profitability of the farm, or the provision of food.* Conditions that are imposed to preserve the profitability of a farm make any subsidized cost increase or required marketing insignificant as a matter of law.

Id. at 486 (Emphasis added.)

The petition for review to this Court followed.

III. SUMMARY OF ARGUMENT

In this case, the Court of Appeals propounded a farm impacts test under ORS 215.296 which was not addressed by the applicant or applied by the county in *SDC-2*. LUBA did not apply this standard in its decisions remanding the county's approval in *SDC-1* and *SDC-2*. The Court of Appeals devised a qualitatively different standard which lacks any basis in the text of the statute itself, or in its legislative history. Moreover, that test is exceedingly complex

and is not readily understood or applied. As a practical matter, it would result in confusion and an improper shifting of the burden of proof from applicants to affected farmers.

When one reads ORS 215.296(1) and (2) pursuant to their text and the expressions of legislative intent which resulted in the development of that text, it is evident that the court erred in affirming LUBA, and in construing the burden established by the statute to be fulfilled in light of the following:

(1) Conditions of approval adopted under ORS 215.296(2) which force a farmer to adopt new farm practices against his/her will in order to mitigate impacts of the proposed nonfarm use;

(2) Conditions of approval which force a farmer against his/her will to regularly allow the entry of third parties onto the farm to carry out mitigation at the applicant's expense;

(3) Conditions of approval requiring the applicant to pay or reimburse a farmer for additional costs incurred due to significant impacts of the nonfarm use, while still forcing a significant change in accepted farm practices;

(4) Conditions of approval compelling an adversely affected farmer to sell his/her tainted crop to the applicant at market price, rather than to customers in the farmer's established commercial marketplace;

(5) Mitigation measures ostensibly controlling significant farm impacts, which would only become effective after a period of years;

(6) Significant reduction in crop prices as a result of the proposed nonfarm use; and

(7) In not requiring the consideration of the cumulative effect of multiple impacts upon two or more farms.

IV. ARGUMENT

A. Applicable Statutes and Regulations

The brief of *amicus curiae* 1000 Friends of Oregon addresses the history and purpose of Oregon's statutory and regulatory framework for the preservation of agricultural land in some detail. Merits Brief of 1000 Friends of Oregon, at 2-4. Petitioners incorporate that discussion by reference without restating it here, but will review the essential background.

ORS 215.243 sets out the state's policy with respect to its agricultural lands:

> **215.243 Agricultural land use policy.** The Legislative Assembly finds and declares that:
>
> (1) Open land used for agricultural use is an efficient means of conserving natural resources that constitute an important physical, social, aesthetic and economic asset to all of the people of this state, whether living in rural, urban or metropolitan areas of the state.

> (2) The preservation of a maximum amount of the limited supply of agricultural land is necessary to the conservation of the state's economic resources and the preservation of such land in large blocks is necessary in maintaining the agricultural economy of the state and for the assurance of adequate, healthful and nutritious food for the people of this state and nation.
>
> (3) Expansion of urban development into rural areas is a matter of public concern because of the unnecessary increases in costs of community services, conflicts between farm and urban activities and the loss of open space and natural beauty around urban centers occurring as the result of such expansion.
>
> (4) Exclusive farm use zoning as provided by law, substantially limits alternatives to the use of rural land and, with the importance of rural lands to the public, justifies incentives and privileges offered to encourage owners of rural lands to hold such lands in exclusive farm use zones.

This language has remained unchanged since its adoption in Oregon Laws 1973, chapter 501, section 1 (Senate Bill 101, a companion to Oregon's landmark Senate Bill 100, enacted during the same legislative session). It lies at the core of Oregon's system of comprehensive land use planning, which was designed in significant part to protect the state's valuable resource lands from urban and suburban sprawl.

Statewide Planning Goal 3, "Agricultural Lands" (OAR 660-015-0000(3)), which took effect on January 25, 1975, "has always complemented these policy statements * * *." Edward Sullivan and Ronald

Eber, *The Long and Winding Road: Farmland Protection in Oregon 1961-2009*, 18 San Joaquin Ag L Rev 1, 18 (2008-2009). Goal 3 states in material part:

> GOAL 3: AGRICULTURAL LANDS
>
> **To preserve and maintain agricultural lands.**
>
> Agricultural lands shall be preserved and maintained for farm use, consistent with existing and future needs for agricultural products, forest and open space and with the state's agricultural land use policy expressed in ORS 215.243 and 215.700.
>
> **USES**
>
> Counties may authorize farm uses and those nonfarm uses defined by commission rule that will not have significant adverse effects on accepted farm or forest practices.
>
> **IMPLEMENTATION**
>
> Zoning applied to agricultural land shall limit uses which can have significant adverse effects on agricultural and forest land, farm and forest uses or accepted farming or forest practices. * * *

ORS 215.283 (1989), initially enacted as Oregon Laws 1983, chapter 826, section 17, divides uses on lands designated EFU into two categories. ORS 215.283(1) lists permitted uses. ORS 215.283(2) lists "nonfarm uses [which] may be established, subject to the approval of the governing body or its designee in any area zoned for exclusive farm use subject to ORS 215.296."

The relevant provisions of ORS 215.296 are contained in subsections (1) and (2). For ease of reference, petitioners set out those provisions again here:

> **215.296** (1) A use allowed under ORS 215.213 (2) or (11) or 215.283 (2) or (4) may be approved only where the local governing body or its designee finds that the use will not:
>
> (a) Force a significant change in accepted farm or forest practices on surrounding lands devoted to farm or forest use; or
>
> (b) Significantly increase the cost of accepted farm or forest practices on surrounding lands devoted to farm or forest use.
>
> (2) An applicant for a use allowed under ORS 215.213 (2) or (11) or 215.283 (2) or (4) may demonstrate that the standards for approval set forth in subsection (1) of this section will be satisfied through the imposition of conditions. Any conditions so imposed shall be clear and objective.

This language is straightforward. Will the proposed nonfarm use force a significant change in accepted farm practices on surrounding lands devoted to farm use? Will it significantly increase the cost of accepted farm practices on such lands? If the answer to either *or* both is yes, can compliance nonetheless be demonstrated by means of conditions of approval under subsection 2?

B. Applying ORS 215.296

The starting point for the required analysis is a determination of the accepted farm practices on surrounding lands. This entails an initial, detailed evaluation by the applicant. The applicant bears the burden of proof in identifying the surrounding area, the farms within it, the accepted farm practices on those farms and the impacts of the proposed nonfarm use upon those practices. *SDC-1*, 72 Or LUBA at 361-65. Thus, the focus of the statute

is upon individual impacts upon individual farms, not a telescopic or satellite's-eye view of the status of Oregon's farmland.

The relevant impacts in this case were summarized by LUBA in *SDC-2*. In order to adequately illustrate the farm impacts in this case, petitioners will quote LUBA at some length. With respect to McPhillips Farms, the board stated:

> As explained in *SDC-1*, the McPhillips farm is adjacent to and downwind of the Riverbend Landfill. McPhillips provided detailed testimony regarding changes and increased costs to his hay operation caused by landfill litter deposited in his hayfields. (footnote 4) Specifically, McPhillips testified that the landfill trash forces him to conduct frequent patrols of the hayfield during the year to prevent plastic bags from being buried in the soil over time. In addition, McPhillips testified that he also conducts litter patrols before cutting and baling the hay, in order to prevent damage to baling machines and to prevent plastic from contaminating the hay bales. * * *"
>
> (footnote 4:) In our decision, we quoted the following testimony:
>
> "The prevailing wind currents in the vicinity of Riverbend landfill are west to east. Trash is often blown from the landfill to the McPhillips farm. Litter is a serious issue when haying as plastic bags get caught in the balers. Furthermore, we spend a lot of time all year long picking up the plastic bags from our fields, on our roads and in our trees. We have to do it often as the plastic gets wet and then begins to get covered by crops and dirt where it eventually ends up shredded and then buried into our class 1 and 2 soils. We have a plastic bag reimbursement policy when we trade and sell our hay * * * There is no telling if garbage will show up in our product when the bales are opened up and we offer to buy those bales back. Our streams are lined with plastic bags from Riverbend landfill, especially after a flood. It takes a great deal of time and cost for our farm manager to pick up the litter * * *." (citation omitted.)

"We have to spend a great deal of time going all over our fields picking up the plastic before we bale, because it destroys the baling machine." (citation omitted.).

SDC-2, 74 Or LUBA at 6-7.

The board went on to state, *id.* at 7-8:

On remand, McPhillips provided additional detail regarding changes and costs that he alleges are caused by landfill trash. (footnote 6) In addition, several other hay farmers provided testimony that patrolling hay fields for litter is not an accepted farm practice, and if they had to conduct litter patrols, it would constitute a significant change in their farm practices, and significantly increase the cost of their hay operations.

(footnote 6:) In addition to the testimony submitted during the first proceeding, on remand McPhillips testified further regarding the changes and costs to his farm practices:

"Litter that flies onto our western bottom land hay fields and on our sheep pasture and barnyard must be picked up continuously to keep it from matting into the ground where it breaks down in the grass seed plants and soil. Litter patrol is done on a weekly basis. This is a significant change to standard farming practice.

"The landfill and McPhillips Farm share the same bottomland basin. Each time the floodway/floodplain floods (4 times in 2015-2016) wind-blown garbage that gets into the river floats onto my farm where it gets caught in trees and bushes when the water recedes. As it dries out, wind blows the garbage off the trees and into my fields. Picking trash is a constant chore and imposes significant changes and costs to my farming practice.

"My hay field, directly adjacent to the dump, has constant maintenance issues related to litter collection.

"Litter gets caught in our hay bales making them useless. We have to pull plastic bags out of the gears and tongs of our haying equipment. The source of this litter is the dump.

> "Our goats and sheep survive on home-grown hay. I have to constantly comb the hay fields for trash. We have to constantly hop off farm equipment to pick up litter while conducting other farm services in order to provide my livestock with the litter-free fodder. This is a significant change in farm practice.
>
> "What hay I do not use myself I sell or trade. We have to offer to buy back any bales that end up with landfill trash mixed in. This represents a significant cost increase and erodes what little profit there is in selling hay." Record 149-50.

As we have pointed out, the proposed reopening of now-closed landfill modules will bring the above impacts and their sources closer to the McPhillips farm, and the approved application would add 15 years to the operation and impacts of Riverbend's operation.

LUBA also summarized the testimony of farmer Lillian Frease:

> One basis for remand in SDC-1 was to address the testimony of Lillian Frease regarding impacts of bird defecation on hazelnut, cherry and berry operations. Ms. Frease testified that she had to cease direct and indirect sales of cherries and berries due to concerns regarding contamination and disease that she attributed to the defecation of birds attracted to the landfill that overfly her orchards. Ms. Frease also testified to increased costs to control funguses on her hazelnut orchard, costs she attributed to defecation of birds attracted to the landfill.

Id., at 23.

C. Interpreting ORS 215.296

The appellate courts review statutes *de novo* and determine their meaning using the methodology set forth in ORS 174.020 and *PGE v. Bureau of Labor and Industries*, 317 Or 606, 610-12, 859 P2d 1143 (1993), as

modified by *State v. Gaines*, 346 Or 160, 171-73, 206 P3d 1042 (2009). The courts give primary weight to the text and context of the provision in light of any legislative history that may be appropriately considered.

If the meaning of the statute remains unclear after consideration of its text, context, and legislative history, the courts look to general maxims of statutory construction to aid in resolving the remaining uncertainty. *Gaines*, 346 Or at 172; *Greenfield v. Multnomah County*, 259 Or App 687, 698, 317 P3d 274 (2013).

Again, the Court of Appeals' new test for determining significance under ORS 215.296(1) was presented in two slightly different ways. First, the court stated:

> [A] "significant" change or cost increase of an accepted farm practice is a change or cost increase that will significantly affect the preservation of productive agricultural land for, among other things, the purpose of obtaining a profit in money and providing food.

SDC, 284 Or App at 485.

Referring to the challenged conditions of approval, the court stated as follows:

> So understood, the imposition of Condition 25—requiring the payment or avoidance of particular increased costs to the accepted farm practice of harvesting and baling hay in order to preserve productive agricultural land for the purpose of obtaining a profit in money—makes any costs not"significant" under ORS 215.296(1)(b) because those subsidized costs do not affect the profitability of the agricultural enterprise. Similarly, Conditions 26 and 27—requiring the purchase of

> produce from the Frease farm for its "average retail rate"—do not force "significant" changes to farm practices because the conditioned practice will not decrease the supply of agricultural land, the profitability of the farm, or the provision of food.
>
> Petitioners' argument that the conditions significantly affect farm practices or the costs of those practices, regardless of whether the conditioned effects are "adverse," misses the point. The issue is whether the effects of those changes are "significant," even if those costs are avoided or mitigated. *Instead, the relevant inquiry is whether the conditioned practice or cost is "significant" because the change will significantly decrease the supply of agricultural land, the profitability of the farm, or the provision of food.* Conditions that are imposed to preserve the profitability of a farm make any subsidized cost increase or required marketing insignificant *as a matter of law.*

Id., 284 Or App at 485-86. (Emphasis added.)

In effect, as applied in this case, the above holding may be summarized as follows:

(1) If the challenged use, a landfill, causes litter to be deposited on farmers' fields, a condition of approval introducing litter patrols onto the adversely affected farms–something not needed on similar farms distant from the landfill and not an "accepted farm practice"–the condition does not result in a change to an accepted farm practice.

(2) While the "compelled harvest litter patrol * * * does increase the cost of an accepted farm practice under ORS 215.296(1)(b)" (*id.*, 284 Or App at 283), the increase in cost is insignificant as a matter of law if someone other than the farmer pays that cost.

(3) If the landfill attracts large numbers of crows and gulls whose "deposits" taint the fruit crops of nearby farmers and render them unsaleable to the farmer's established customer base in the commercial marketplace, a condition requiring the landfill operator to purchase the tainted crops does not force a significant change to an accepted farm practice. This is true even if the language of the condition eliminates the opportunity for increasing production of the crop in question.

(4) Similarly, as a matter of law, the loss of that farmer's established customer base does not force a significant change to an accepted farm practice, nor does it give rise to a significant increase in the cost of an accepted farm practice.

The test adopted by the Court of Appeals was not addressed by the applicant or applied by the county in *SDC-2*. It is not the standard applied by LUBA in its decisions remanding the county's approval in *SDC-1* and *SDC-2*. The Court of Appeals devised a qualitatively different standard, with no basis in the text of the statute itself.

The text of ORS 215.296(1) is unambiguously directed at significant changes in accepted farm practices *or* the costs of such practices on individual, affected farms, nothing more and nothing less. The words "[f]orce a change in accepted farm practices" are plainly directed at individual farms and farmers.

They do not address the broader issue raised by the court, as to whether productive farm land is entirely lost to agricultural production. They address changes in *farming*, not the death of farming. The court's thesis that changes on individual farms are insignificant under the statute is without basis in the statutory language.

Nothing in the text of ORS 215.296(1) calls for a determination of whether productive agricultural land is preserved. Nothing in that language calls for an analysis of the impact of a single proposed nonfarm use upon the supply of agricultural land, whether countywide or statewide. Nothing in that language refers to the "provision of food" in Oregon, or limits its scope to food crops. Indeed, the definition of "farm use" in ORS 215.203(2)(a) lists not just cultivation of food crops but,

> any other agricultural or horticultural use or animal husbandry or any combination thereof. "Farm use" includes the preparation, storage and disposal by marketing or otherwise of the products or by-products raised on such land for human or animal use. "Farm use" also includes the current employment of land for the primary purpose of obtaining a profit in money by stabling or training equines including but not limited to providing riding lessons, training clinics and schooling shows. "Farm use" also includes the propagation, cultivation, maintenance and harvesting of aquatic, bird and animal species that are under the jurisdiction of the State Fish and Wildlife Commission, to the extent allowed by the rules adopted by the commission. * * *

This definition accommodates cultivation of such major non-food crops as grass seed and nursery stock, as well as allowing equestrian operations and

farming of game species for purposes other than consumption as food.

While ORS 215.296(1)(b) specifically addresses potential increases in the *cost* of farm practices, it says nothing about the affected farmer's profits and losses, only his or her costs. It does not propound a more complex "profitability" test. Indeed, this Court has warned against the hazards of over-emphasizing the "profit in money" component of ORS 215.203(2)(a). *Craven v. Jackson County*, 308 Or 281, 287-88, 779 P2d 1011 (1989).

Moreover, a farm profitability test would leave the nonfarm applicant, lacking access to the relevant numbers, having to engage in speculation to meet an impossible burden of proof–yet somehow meeting that burden to county satisfaction through the use of consultants-for-hire. The burden would shift to the farmer to produce and pay for an expert to rebut the testimony of the applicant's consultant. The county would then be free to believe the side it chose to believe.

Among its other features, the test delineated by the court is unduly complex. Its application would require a considerable amount of guesswork by parties and county decisionmakers. The court has mandated knowledge of the unknowable. By the time the impacts described by the court actually take place, it would be too late to do anything about them. At that point, the detriment to the agricultural economy could be both extreme and irremediable.

The court's new test in no way lends itself to adequate proof at the time an application is reviewed.

The court's interpretation of the statute is at odds with and highly destructive of the legislative objective of protecting individual farmers and their farming practices from the impacts of nearby nonfarm uses. The court also neglected its own understanding, set out in *Von Lubken v. Hood River County*, 118 Or App 246, 250, 846 P2d 1178 (1993), that the purpose of ORS 215.296(1) is to address the concern that "agricultural uses not be displaced by *or subjected to interference from non-farm uses*." (Emphasis added.) In going far beyond the language of the text of the statute, the court has opened the door to such interference. The court's holding would enable developers of revenue-producing nonfarm uses to "buy" the right to interfere with agricultural uses.

There is no question but that, especially as to the McPhillips farm, the impacts of the landfill are significant and will be made worse by approval of the proposed operations nearer to the farm. There is also no question but that the clean up services imposed by Condition of Approval 25 would force a significant change in accepted farm practices there, and significantly increase the cost of those practices (no matter who pays those costs). In fact, as LUBA stated:

> Indeed, in addressing litter impacts on the McPhillips farm, we concluded that it was a close question, even considering the imposition of conditions. With respect to such impacts, we did not fully address or affirm the county's initial conclusions that even without conditions the impacts are insignificant. * * *

SDC-2, 74 Or LUBA at 37.

Both LUBA and the Court of Appeals seem to have conflated the two independent components of the required analysis: (1) the proposed nonfarm use must be shown not to force a significant change in accepted farm practices, *and* (2) it must be shown not to significantly increase the cost of such practices. A condition covering the cost of the farmer's mitigation of a forced, significant change in accepted farm practices cannot give rise to the requisite compliance with ORS 215.296(1)(a). On the plain face of its text, the statute does not impose the "either/or" test that the Court of Appeals appeared to promulgate here:

> Petitioners' argument that the conditions significantly affect farm practices or the costs of those practices, regardless of whether the conditioned effects are "adverse," misses the point. The issue is whether the effects of those changes are "significant," even if those costs are avoided or mitigated. Instead, the relevant inquiry is whether the conditioned practice or cost is "significant" because the change will significantly decrease the supply of agricultural land, the profitability of the farm, or the provision of food. Conditions that are imposed to preserve the profitability of a farm make any subsidized cost increase or required marketing insignificant as a matter of law.

SDC, 284 Or App at 486.

Again, the court's interpretation flies in the face of the plain text of the

statute, which says nothing about (1) the supply of agricultural land, (2) the profitability of the farm, or (3) the provision of food.

Moreover, if a significant change in accepted farm practices is "forced," the question of who pays for the new or different practices is irrelevant. If the costs of those practices goes up significantly, compensation does not alter the fact that costs increased significantly. The statute exists for the purpose of protecting farmers from the impacts of nonfarm uses. It says nothing to justify forcing farmers to engage in practices they do not wish to engage in, or limit crop production, or switch to different crops.

In adopting the above interpretation, the Court of Appeals reviewed the statute's text and context. *SDC*, 284 Or App at 484-86. It relied especially upon the language of Oregon's general farmland protection statute, ORS 215.243, stating:

> Under ORS 215.243(2),
>
> > "[t]he preservation of a maximum amount of the limited supply of agricultural land is necessary to the conservation of the state's economic resources and the preservation of such land in large blocks is necessary in maintaining the agricultural economy of the state and for the assurance of adequate, healthful and nutritious food for the people of this state and nation."
>
> Whether a change in an accepted farm practice or the cost of that practice is "significant," then, is determined by whether the change affects the preservation of agricultural land for productive use. [footnote omitted]

SDC, 284 Or App at 484-85.

Nothing in the language of ORS 215.243(2) justifies or compels a reading of ORS 215.296(1) which would negate its clear, unambiguous focus upon individual farms. The legislative history relating to the language codified in ORS 215.296 confirms that focus, as well as the interpretation propounded by petitioners. The Court of Appeals relied upon a partial review of the context of the statute, and with that established a test going far beyond its text. In so doing, it failed to consider the intent of the legislature when it enacted the language in question.[7]

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[7]ORS 174.010 provides:

> "**174.010 General rule for construction of statutes.** *In the construction of a statute, the office of the judge is simply to ascertain and declare what is, in terms or in substance, contained therein, not to insert what has been omitted, or to omit what has been inserted*; and where there are several provisions or particulars such construction is, if possible, to be adopted as will give effect to all.

ORS 174.020 provides:

> **"174.020 Legislative intent; general and particular provisions; consideration of legislative history.** (1)(a) *In the construction of a statute, a court shall pursue the intention of the legislature if possible.*
>
> (b) *To assist a court in its construction of a statute, a party may offer the legislative history of the statute.*
>
> * * * * *
>
> (3) A court may limit its consideration of legislative history to the information that the parties provide to the court. A court shall give the weight to the legislative history that the court considers to be appropriate." (Emphasis added.)

The statutory language in question here initially arose in the context of 1983 legislation governing nonfarm dwellings on EFU land. As of 1981, the controlling language was contained in ORS 215.213(3):

> "(3) Single-family residential dwellings, not provided in conjunction with farm use, may be established, subject to approval of the governing body or its designate in any area zoned for exclusive farm use upon a finding that each such proposed dwelling:
>
> *(a) Is compatible with farm uses described in ORS 215.203(2) and is consistent with the intent and purposes set forth in ORS 215.243;*
>
> *(b) Does not interfere seriously with accepted farming practices, as defined in ORS 215.203(2)(c), on adjacent lands devoted to farm use*;
>
> (c) Does not materially alter the stability of the overall land use pattern of the area * * *."

(Emphasis added.)

By 1981, the legislature had become concerned about issues adversely affecting EFU lands:

> In 1981, the Joint Legislative Committee on Land Use ("JLCLU") established an EFU Task Force to recommend changes to the EFU statutes that would "improve the quality of county exclusive farm use (EFU) zone decisionmaking." In November of 1982, the Task Force submitted its report and recommendations to the JLCLU. They considered the recommendations of the EFU Task Force on amendments to the EFU statute in ORS chapter 215. Some of these became part of the 1983 Marginal Lands legislation.

Sullivan and Eber, *The Long and Winding Road* at 27 (footnotes omitted).

The EFU Task Force proposed replacement language which was incorporated into 1983 Senate Bill 237, and adopted by the Senate. It replaced the language of ORS 215.213(3)(a)-(c) with the following:

> "(a) The dwelling or activities associated with the dwelling will not force a major change in or measurably increase the cost of accepted farming practices on nearby lands devoted to farm use."

SB 237 then came before the House Committee on Environment and Energy. The above language was discussed at its July 7, 1983 work session. Minutes, House Committee on Environment and Energy, July 7, 1983, p. 1. (App A) Concerns were raised about whether farmers would be adequately protected by a test based upon whether the proposed nonfarm dwelling "will not force a major change in or measurably increase the cost of accepted farming practices on nearby lands devoted to farm use." Committee members discussed the possibility of applicants for nonfarm dwellings compensating farmers for increases in the cost of farming, whether by agreement or through litigation. Representative VanLeeuwen stated:

> "An unmeasurable cost that really gets into this situation is the activity associated with the dwelling if that person has a big dog, or even a little dog, and then they run out through your field a number of times, you can't really measure that cost, but you know there was a cost in shattered seed."

Transcript, House Committee on Environment and Energy, July 7, 1983, Tape 283, Side A, pp. 6-7. (App B)

Representative Throop stated:

> "*We shouldn't be setting up a situation where we're going to be requiring that farmers get into compensation with their neighbors.* I like the idea behind the criteria that is included in this draft is to prevent those situations from occurring in the first place. And I thought that was our objective in trying to redefine the criteria for the EFU zone. If it was going to have an impact on that farming practice, then that nonfarm dwelling wouldn't be allowed."

Id., p. 7. (Emphasis added.)

Representative VanLeeuwen proposed an amendment to the Senate language, and the following discussion ensued:

> "CHAIRWOMAN HOOLEY: Your amendment, which would be, the dwelling or activities associated with the dwelling will not force a major change in * * * or major increases in the cost--because as I understood your motion, you did not want it to--you wanted it to reflect that if there was a major change in accepted farming practice, or a major change--a major increase in the cost of the farming practice–
>
> REPRESENTATIVE VanLEEUWEN: Okay. I said the dwelling or activities associated with the dwelling will not force a major change in the farming practices, or in the cost of accepted farming--
>
> CHAIRWOMAN HOOLEY: Or a major--in the cost of accepted farm practices.
>
> REPRESENTATIVE VanLEEUWEN: But Madame Chair, I would like to change the major -- I make a move that a friendly amendment to mine that would change that to significant instead of major. *Significant, in my mind, being less than major.*"

Id., pp. 10-11. (Emphasis added.)

After an initial vote, the following discussion occurred:

"CHAIRWOMAN HOOLEY: Representative Anderson's motion would be, the dwelling or activities associated with the dwelling will not force a major change in the cost of accepted farming practices on nearby lands devoted to farm use.

REPRESENTATIVE ANDERSON: Chair, I would make that, if it's friendly to everybody, *the word significant that is less onerous than major.*

CHAIRWOMAN HOOLEY: Representative Anderson moves that the dwelling or activities associated with the dwelling will not force a significant change in the increase in the cost--significant change in the cost of accepted farming practices on nearby lands * * *"

Id., pp. 12-13. (Emphasis added.)

Before a further vote, Lois Kenagy of Agriculture Oregon testified and clarified the distinction between impacts on farm practices, and impacts upon the cost of those practices:

"I was going to comment on--following Hector's [Macpherson's] comments, that the one difference is for the * * * farm operator who is a one-person operation. And the major change can be the time on that farmer. And it's--it's a cost, but it's not a cost that I would guess the courts would recognize in terms of his hours. I mean, what kind of value do I put on my time, or my husband's time, when many times he's working for nothing as the year-end finances work out.

But when I think of the time that's required to communicate with the neighbors, and to work out problems with all the surrounding rural residential things, that requires -- it's a major change when we're working on a farm process surrounded by houses * * *. That is a major change. But it does not measurably increase in terms of the dollar outlay.

And from our own situation, from my own experience and working in both suburban and the areas outside urban growth boundaries in both Corvallis and Albany, I think having both--having a significant change in the accepted farming practices, or some kind of increase in the

> cost of accepted farming practices. I think both of those gives a better protection for agriculture * * *."
>
> CHAIRWOMAN HOOLEY: * * * How would you feel about, the dwelling or activities associated with the dwelling will not force a significant change in or significant increase in the cost of accepted farm practices?"

Id., pp. 16-18.

Chair Hooley then proposed an amendment:

> "On line 12, a significant change in, or a significant increase in the cost of accepted farming practices on nearby lands devoted to farming."

Id., p. 19.

This language was adopted by the committee (*id.*) and enacted by the legislature. Or Laws 1983, ch 826 § 6. ("The dwelling or activities associated with the dwelling will not force a significant change in, or a significant increase in the cost of accepted farming practices on nearby lands devoted to farm use.") As is apparent from the above discussion, the committee's concerns in adopting the current language were directed at impacts upon individual farms and farmers, not the overall supply of agricultural land or the provision of food to the populace. Compare Representative Van Leeuwen's concern about a single dog shattering seed in a field one or more times–upon which her committee acted in adopting the current language of the statute–with the trampling of Mr. McPhillips' fields by frequent county-mandated litter patrols.

Farming practices were to be protected independently of impacts upon the costs of those practices. The concept of compensation or developing a methodology for compensating farmers for increased costs was considered and rejected.

In 1989, this standard was incorporated into ORS 215.296 in its present form. 1989 House Bill 2682; Or Laws 1989, ch 861, § 6. That which in 1983 had been made,

> only applicable to non-farm dwellings in Marginal Land Counties, was applied to the non-farm uses allowed through a discretionary review.[8] This new standard required a demonstration that the proposed use will not force a significant change in or significantly increase the cost of accepted farm or forest practices on surrounding lands devoted to farm or forest use.

Sullivan and Eber, *The Long and Winding Road* at 27 (footnotes omitted).

Petitioners have undertaken a review of the legislative history leading up to the enactment of Or Laws 1989, ch 861, § 6. The committee minutes and recordings relating to HB 2682 shed little additional light upon the test enacted in 1983. The farm impacts test first appeared in the A-9 amendments to that bill, after it had reached the Senate Committee on Agriculture and Natural Resources. The limited discussion of the language is reflected in the committee's hearing minutes. Minutes, Senate Committee on Agriculture and

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[8] *i.e.*, the uses listed in ORS 215.213(2) and 215.283(2). These are also commonly referred to as "conditional" uses in EFU Zoning Districts.

Natural Resources, June 16, 1989, p. 3. (App C) The minutes summarize the testimony of Neil Kagan of 1000 Friends of Oregon, that the "A-9 amendments add standards for approval of conditional uses in general." A transcript of the recording of that hearing provides Mr. Kagan's testimony verbatim:

> Now, what the A-9 amendments do is simply add to that standards for the approval of conditional uses in general. From now on, all conditional uses may only be approved if there's a showing that they will not force a significant change.

Transcript, Senate Committee on Agriculture and Natural Resources, June 16, 1989, Tape 186, Side A, p. 10. (App D)

The cited legislative history supports the straightforward reading of the statute petitioners advocate. It also confirms LUBA's reliance upon the dictionary definitions of "significant" and "insignificant," discussed above. It lends no support to the new test adopted by the Court of Appeals.

In its initial land use application filed with the county, Riverbend tried to apply a farm impacts test similar to that eventually propounded by the Court of Appeals. This appeared in a so-called "Farm Impacts Analysis" (FIA), supplied by Riverbend's consultant. In *SDC-1*, 72 Or LUBA at 366, LUBA explained at some length why such a test does not comply with the actual text of ORS 215.296(1), and highlighted the dangers a reading of the statute such as that later adopted by court would create:

The county gave "great weight" to a longitudinal study included in the FIA concluding that lands devoted to farm operations in the vicinity of the existing landfill have remained stable, and that some farm operations have even intensified over the years. (footnote omitted) Petitioners argue that the county erred in placing such weight on the longitudinal study. According to petitioners, evidence that (1) the amount of land devoted to farm use in the vicinity has remained stable over the years, (2) new farm uses have been developed, and (3) no land has been taken out of production has little direct bearing on the question posed by ORS 215.296(1): will the proposed use significantly change or significantly increase the cost of accepted farm practices on surrounding farms?

We generally agree with petitioners that the kind of conclusions drawn in the longitudinal study have little direct bearing on the question posed by ORS 215.296(1), and certainly should not have been given "great weight" in evaluating compliance with the statute. There is no logical connection between the fact that the lands devoted to farm use in the vicinity of the existing landfill have remained stable or even expanded over the years and the question of whether the landfill has significantly changed or significantly increased the cost of accepted farm practices on those surrounding farms. It is quite possible that farm use has remained viable *despite* significant changes or significant increases in the costs of accepted farming practices, or indeed *because* changes and cost increases have allowed farm operations to continue despite the impacts of the landfill.

Moreover, Finding 185 can be read to suggest that the significant change/cost threshold is not exceeded unless and until area farms actually go out of business, cease farm operations, or take land out of production. If so, the finding sets the significance threshold far too high. A farm operation may experience significant changes or significant increases in the cost of farm operations, even if the farm operation remains profitable, and even if the farm operation is able to expand despite impacts.

Because the county incorrectly gave "great weight" to the longitudinal study, and possibly used the study's conclusions to set an erroneous threshold for establishing compliance with the significant

> change/cost standard, remand is necessary for the county to reevaluate compliance with ORS 215.296(1) under the correct standard.

(Emphasis in original.)

LUBA's interpretation of ORS 215.296(1) in *SDC-1* is correct in light of the text, context, and legislative history of the statute. In the Court of Appeals' discussion of the specific farm practices in question herein, it simply misconstrues the statute.

The court's discussion of litter patrols imposed upon the McPhillips farm (*SDC*, 284 Or App at 481-84) is particularly troubling. Other hay farmers grow, harvest, bale, and sell hay without trash in the fields and without litter patrols. Waste from the landfill and the resulting litter patrols mandated by the county would require a significant change in those accepted farm practices, regardless of who pays. The court has ratified an obligation to allow third persons onto the farm, with attendant liabilities to the farmer. The result is to force a significant change in accepted farm practices under any reasonable definition. The court's conclusion is inexplicable:

> We conclude that the required hay harvest litter patrol does not change an accepted farm practice under ORS 215.296(1)(a). As noted, under ORS 215.203(2)(c), "accepted farm practice" means "a mode of operation that is common to farms of a similar nature, necessary for the operation of such farms to obtain a profit in money, and customarily utilized in conjunction with farm use." Petitioners do not contend that litter patrols are common to hay farms, are necessary to obtain a profit in money from hay farming, or are customarily utilized in conjunction with agricultural operations, so as to qualify litter patrols in general as

> accepted farm practices. Indeed, they do not dispute LUBA's conclusion that "[i]t is important to recognize that the litter patrols described by McPhillips are not 'accepted farm practices.'" Thus, the litter patrols that are necessitated on the McPhillips farm do not "*change* [an] accepted farm * * * practice[]" under ORS 215.296(1)(a) (emphasis added).

Id. at 482-83. (Ellipses and other notations in original.)

Petitioners fail to comprehend how the addition of an entirely new, uncommon, previously unaccepted process or step to the cultivation and sale of hay is anything other than a change in accepted farm practices under the statute. The accepted farm practice is growing and selling hay *without* the necessity of litter patrols. *That* is the common "mode of operation" of such farms. It would seem the court believes that a change under ORS 215.296(1)(a) arises only when a farm practice has been in place all along, and must subsequently be intensified as a result of the proposed nonfarm use. That distinction frankly makes no sense.

Similarly, Ms. Frease had established a commercial market for her fruit. Marketing to the public is an accepted farm practice. Selling to a non-consumer for disposition in a landfill is not. In addition, applying the court's methodology, requiring the sale of crops for use as garbage would significantly affect the "preservation of productive agricultural land for the purpose of * * * *providing food*." *Id.*, 284 Or App at 485. (Emphasis added.) Further, the language of Conditions 26 and 27–requiring Riverbend to purchase only the

fruit "from the existing cherry trees" and "from the existing berry vines"–impairs Ms. Frease's ability to increase production to meet market demand and make more money, fundamental and accepted farm practices at the heart of farm economics and the ability to continue to farm.

The ultimate, but still logical, upshot of sustaining a condition of approval requiring a farmer to accept outsiders on his/her property, or to sell crops outside the recognized marketplace, would be the approval of nonfarm uses conditioned upon the farmer's sale and the applicant's purchase of the affected farm itself, regardless of whether the farmer wishes to sell. Hyperbole? Not at all. If Ms. Frease declines to "sell" her crops to the landfill, she must endure the impact of the landfill expansion upon the profitability of her crops, or change her accepted farm practices by switching to less profitable crops.

By the same token, if Mr. McPhillips does not wish to accept the imposition of charitable field- or crop-cleaning services tendered by the landfill at the generous insistence of the county, he too is out of luck. He must accept growing an unsaleable hay crop, or constantly "harvesting" plastic and other landfill debris himself, or finding a less profitable crop that grows and sells well while ensconced in Riverbend's garbage–or give up farming on his seventh-generation family farm altogether. This is not what the text and

legislative history of the statute contemplate.

Do the above circumstances demonstrate that Riverbend has met its burden of proving compliance with ORS 215.296(1) and (2)? That is anything but the case here. If anything, there has been a thorough shifting of the burden of proof under ORS 215.296 to the affected farmers. LUBA's order affirming the county's findings of compliance was unlawful in substance. The Court of Appeals erred in its failure to so find, and in the reasoning it adopted in support of its decision.

The text of ORS 215.296 and the legislative history behind it are clearly stated and contrary to the Court of Appeals' interpretation. This Court should favor adherence to the text of ORS 215.296(1) and (2) and the demonstrated intent of the legislature at the time that text was enacted. Accordingly, it should reverse the decision of the Court of Appeals.

D. "Temporarily" Significant Impacts May Still Be Significant under the Statute.

Petitioners argued on the record before the county and at great length before LUBA in *SDC-2* that expansion of the landfill and use of its existing falconry program to drive gulls and other birds away would serve only to exacerbate the dramatic impacts of gulls from the landfill upon grass seed crops on nearby fields. Petitioners cited the testimony of Mr. McPhillips:

> "Seagulls sometimes eat grass, but more importantly seagulls destroy young crops by rooting up the young grass starts as they look for worms, grubs and slugs. Large swaths of young grass seed plugs are destroyed each winter by seagulls attracted to the landfill. Landfill expansion allows this problem to continue for years to come, greatly adding to the cost to raise grass seed and hay."

Pet Rev at 37, RT 367.

Petitioners also pointed out the testimony of Mary Anne Nash on behalf of the Oregon Farm Bureau Federation:

> "Seagulls congregate around the landfill and spill over onto adjacent fields, where they feed * * * on establishing crops and root in the soil for worms and bugs, causing significant crop damage and decreasing yields. * * * These issues both significantly increase the cost of farming operations and force a significant change in farming practices as farmers battle the birds."

Id. at 38, RT 368.

Petitioners noted similar testimony of directly affected grass seed farmers, including Dave Kauer of Kauer Farms:

> "We have witnessed yearly populations of seagulls - over a thousand/day each year during the months of November, December and January that are attracted to Riverbend. We understand the landfill has hired a falconer who scares the seagulls off the open fill. These birds then fly over to our newly planted grass seed fields where they tug out our young grass seed plugs looking for worms, slugs and larva.
>
> We know they are destroying our fields for two simple reasons. 1) We can see them pull out the grass plugs leaving bald spots in the rows and 2) Because they are selective to the fields they sit in - meaning only the fields that there is food for them to eat. * * *
>
> Once the grass is pulled out it will not produce seed for 3 years at that spot. When we scared the birds off the fields we would watch them fly

> back over to the dump. Soon, presumably because the falcon was over at the landfill the seagulls would all fly back and land once again on our newly planted fields.
>
> We have spent a great deal of money- supplies, time and labor- erecting big white flags in our fields to ward off the seagulls. As you can see from the video's they do not work well. We have newly planted grass seed fields elsewhere in the county and only on the fields next to Riverbend Landfill do we have to significantly change the way we farm to counter the seagulls. * * *
>
> We have farmed in Yamhill County for a long time. We have not appreciated the conflict the landfill has brought our community and request that you apply ORS 215.296 appropriately by finding that we have had to significantly change the way we farm and have incurred significant costs due the landfill."

Id. at 38-39, RT 368-69.

In their opening brief in the Court of Appeals, petitioners addressed the county's Condition of Approval 22 (RT 415), through which Riverbend would purportedly mitigate such nuisance bird impacts upon nearby farms by *expanding* its falconry operation. Petitioners argued:

> LUBA found regarding Condition 22 that "the intended effect of a more intensive falconry program is that, over time, the winter nuisance bird population in the area will drop to a level that will not be significantly greater than the population that would be present in the absence of the landfill. (n 17)" ER 31-32. (In footnote 17, LUBA quotes the falconer's contention that the benefits of increased falconry would appear "in the long term." ER 32.) Here, LUBA errs in its interpretation and application of ORS 215.296(1) and (2). The ostensibly effective reduction in the nuisance bird population would only occur "over time," "in the long term." What about the continuing violations of the significant change/cost standard in the meantime, over the intermediate period of an undetermined number of years? The county did not say. LUBA does not say. * * *

Pet Opening Brief (Amended) at 35-36.

In response, the court held:

> As we have explained, a "significant" change in farm practice or increase in the cost of an accepted farm practice is one that will "significantly affect the preservation of productive agricultural land for, among other things, the purpose of obtaining a profit in money and providing food." 284 Or App at 485. It was reasonable for the county to conclude that the temporary effects of nuisance birds on farm practices prior to the full implementation of Conditions 22 and 23 are not "significant," because any temporary effect of nuisance birds on farm practices has no long-term effect of inhibiting the use of agricultural land for profit. The issue is not whether the effects of nuisance birds are significant, but rather whether those effects will force a change in farm practices that significantly inhibits the use of agricultural land for profit.

SDC, 284 Or App at 493.[9]

Petitioners fail to apprehend the court's reasoning. If a significant loss of grass seed crops, and the need to erect flags through the fields to try to protect those crops, do not reflect significant impacts upon accepted farm practices, what would? If that significant crop loss is not an effect that "significantly inhibits the use of agricultural land for profit," what is?

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[9]Petitioners would also note the Court of Appeals' reference to LUBA's statement regarding evidence "that some of the recommended [bird control] measures will apply and will 'contribute to the effectiveness of the effort to control nuisance bird populations attracted to the landfill'." *SDC*, 284 Or App at 491. The court asserts that petitioners "did not dispute" that conclusion below. *Id.* This overstates what LUBA held. *SDC-2*, 74 Or LUBA at 22. It is also incorrect. (Intervenor-Petitioner's Brief in *SDC-2* at 17-21, RT 292-96)

The court relies upon its fundamental misreading of the statute. Even if the "temporary" impact were to go on for years, "any temporary effect of nuisance birds on farm practices has no long-term effect of inhibiting the use of agricultural land for profit." For the reasons set out by petitioners above with respect to the court's interpretation of ORS 215.296(1) and (2) , the court erred in holding that the "temporary" farm impacts in this case will not force a significant change in accepted farm practices or significantly increase the cost of those practices.

E. Reduction in the Price of Farm Crops Caused by the Proposed Nonfarm Use May Force a Significant Change in Accepted Farm Practices or Significantly Increase the Cost of Those Practices.

If an element of the test propounded by the Court of Appeals is whether an impact will "significantly decrease * * * the profitability of the farm" (*SDC*, 284 Or App at 486), the court's dismissal of petitioners' argument regarding significant decreases in the price (profitability) of wine grapes and other crops makes no sense. *Id.* at 493-94. Riverbend's proposed expansion would bring the landfill closer to Youngberg Hill Vineyard. Petitioners argued as follows before LUBA with respect to this farm:

> Youngberg Hill is downwind of the dump and has a bird-eye view of it. LUBA Rec 870, 4897. More of the view is taken over by "the mountain of trash" on a daily basis. LUBA Rec 4897. Odors from the landfill have gotten worse over the last two years. *Id.*

The owner of Youngberg Hill testified:

> "Youngberg Hill urges the county to reconsider its position on the Riverbend Landfill due to the significant impacts it has on our agricultural based business. As a small family owned farm, we are dependent on the agricultural product we grow, produce consumer based product we sell, and the tourism needed to sell that product.
>
> This is due to the fact that buyers and potential buyers of our fruit and wine perceive our organically and biodynamically grown fruit to be of lower quality do [sic] to the existence of the landfill. It is additionally negatively impacted by the reduction in 'curb appeal' that the landfill brings to the valley that is promoted as a beautifully scenic agricultural environment.
>
> The existence of the landfill has put downward pressure on the price of our fruit by as much as $500 per ton. That can equate to over $20,000 per year in negative impact." Rec 161.

Int-Pet Brief at 40-41, RT 315-16.

Being forced to sell premium wine grapes as if they were lower quality grapes is a significant change in accepted farm practices. It may also serve to discourage the cultivation of premium varietals, or cause a change in crops entirely, which in either event would force a significant change in accepted farm practices. Why grow top-quality grapes if you cannot obtain a fair market price for them? Petitioners would also submit that by reducing the farmer's operating margin, a significant reduction in crop price has the net effect of

significantly increasing the cost of accepted farm practices.[10]

For these reasons, the Court of Appeals misconstrued ORS 215.296(1) in holding that a duly demonstrated, significant decrease in crop prices resulting from a proposed nonfarm use is not cognizable under the statute.

F. Cumulative Impacts Across Two or More Farms

Finally, the court's rationale for disregarding cumulative impacts across multiple farms, where each impact approaches the threshold of significance, has no basis in the language of ORS 215.296(1). *SDC,* 284 Or App at 494-96. Taken together, such impacts may significantly disrupt the critical mass of producers in a given area, forcing many to change crops or cease farming. The court's reasoning thus fails to square with a component of its own test for significance– impacts causing a significant decrease in the supply of agricultural land.

Petitioners incorporate by reference here the argument regarding cumulative impacts set out at pages 10-12 of the Brief of *amicus curiae* Oregon Farm Bureau Federation. Petitioners would add that the court's

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[10]Petitioners recognize that proving a reduction in crop prices due to a proposed nonfarm use may be something of a speculative exercise when the use does not already exist. However, in this case the use does exist and has had the effect in question. Riverbend's expansion would bring that use and its impacts closer to the affected vineyards and extend their duration, thereby exacerbating them greatly.

reliance upon *Von Lubken v. Hood River County, supra,* 118 Or App at 251, is misplaced. The issue addressed in *Von Lubken* was whether six impacts of a proposed golf course upon a farm had to be addressed cumulatively. The court held that to be the case; it was insufficient for the applicant to show only that the impacts were not significant on an individual basis. *Id.* However, the court simply did not reach the issue of the significance of single or multiple categories of impacts affecting multiple farms.

For these reasons, the court erred in the way it applied ORS 215.296(1) to the need for applicants for nonfarm uses to meet their burden of proof regarding the significance of cumulative impacts.

V. CONCLUSION

This Court should reverse the judgment of the Court of Appeals as a result of its misconstruction and incorrect interpretation of ORS 215.296(1) and (2). The Court should remand this case to LUBA for further proceedings consistent with the text of the statute and the intent of the legislature when that text was enacted.

Respectfully submitted this 10th day of August, 2017.

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CERTIFICATE OF SERVICE AND FILING
and Certificate of Word Count

I hereby certify that on the date indicated below, I caused to be filed the attached BRIEF ON MERITS – PETITIONERS ON REVIEW with the:

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I further certify that BRIEF ON MERITS – PETITIONERS ON REVIEW complies with the word count limitation in ORAP 5.05(2)(b)(i)(A) for an opening brief in the Supreme Court; it is proportionately typed, not smaller than 14-point font for the body and footnotes, and contains 12,871 words.

DATED this 10th day of August, 2017.

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